

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: July 23, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Premier Financial Services, LLC vs. 520 Capital, LLC., 25-01534382	Plaintiff applies for a writ of possession after hearing against Defendant David Kent Riemann aka Dave Kent Riemann. (Code Civ. Proc. § 512.020.) The property sought to be possessed is a 2012 Mercedes Benz SLS AMG Roadster, VIN WDDRK7HA0CA009440 (the "Vehicle"). On or about August 28, 2023, Defendant 520 CAPITAL, LLC, a California limited liability company ("520 Capital"), executed and delivered to Plaintiff an Open End Motor Vehicle Lease Agreement (the "Lease") for the lease of the Vehicle. Pursuant to the Lease, Defendant 520 Capital agreed to make a first month lease payment of \$5,273.29 due August 30, 2023, and fifty-eight (58) monthly payments in the sum of \$2,636.64 due on the 30th of each month, commencing on September 30, 2023.

		Defendant breached the Lease by failing to make said payments. Defendant David Kent Riemann aka Dave Kent Riemann was the Guarantor on the Lease. Plaintiff has performed all of its obligations under the terms of the Lease, except as excused or prevented by the conduct of 520 Capital. 520 Capital breached the Lease. Plaintiff has been damaged in the total amount of \$141,466.60 plus prejudgment interest. Defendants have refused to return the Vehicle which has a value of \$93,900.00. Plaintiff believes that Defendants are in possession of the Vehicle at 17 Cornflower Street, Coto De Caza, CA 92679. Code Civ. Proc. Section 512.010 provides the statutory framework for an application for a writ of possession. Pursuant to subd. (b)(5) of Code Civ. Proc. Section 512.010, the application must include a statement that the property has not been taken under a statute for a tax, assessment, or fine. Here, Plaintiff's application or supporting documents fail to contain such a statement. Moreover, Plaintiff has the burden of proof on the prima facie case. (Code Civ. Proc. § 512.060.) As Plaintiff fails to comply with Code Civ. Proc. Section 512.010, Subd. (b)(5), a writ cannot be granted and the Application for Writ of Possession is DENIED WITHOUT PREJUDICE. The Case Management Conference is continued to August 20, 2027 at 1:30 p.m. <i>Moving Party to give notice.</i>
101	Ally Bank vs. Carmona, 25-01531431	Plaintiff Ally Bank ("Plaintiff") applies to the Court for a writ of possession against defendant Alejandro S. Carmona ("Defendant") regarding the subject 2021 Ford F-250 motor vehicle, Vehicle Identification No. 1FT7W2BT4MED43449. Plaintiff has filed a proof of service showing that the Summons, Complaint, and Notice of Application for Writ of Possession and Hearing were served by substituted service on May 24, 2026 after personal service could not with reasonable diligence be effected. The documents were thereafter mailed on May 28, 2026 and service was therefore complete on June 8, 2026. Defendant has failed to file any opposition. Here, the Declaration of Fernando Caballero establishes that Defendant entered into a contract with the Car Castle dealership for the purchase of the subject vehicle and secured financing for the purchase through Plaintiff. (Declaration of Fernando Caballero ¶ 6.) The dealership has assigned all of its interest in the contract to Plaintiff. (Ibid.) Pursuant to the terms of the contract, upon default of any provision thereof, Plaintiff has the right to immediate possession of the subject vehicle. (Id. ¶ 8.) Defendant is in